

tors (*b*); but an order for accounts and inquiries will be made under Order 15, if the circumstances of the case require it (*c*). But the Court will not direct the ordinary accounts under Order 15, where charges of breach of trust are made which may necessitate accounts being directed at the hearing on a different footing.¹

24. Frame of the action.—If an action be necessary it] may be instituted either by the trustee or by the *cestui que trust*; but in most cases an action is sustained rather than originated by the trustee. Whether the trustee be plaintiff or defendant, he should take care before an order is made, that all parties who have any colour of title are before the Court, for if the trustee fail in his duty to point out the proper parties, it might be held that the order of the Court under such circumstances did not indemnify him.

[If the trustee is plaintiff, and his accounts are directed to be taken, the conduct of the proceedings will be given to the defendants (*d*).]

25. Plaintiff held to have no interest.—Where the suit is commenced by a *cestui que trust*, and it is found at the hearing that upon the true construction of the instrument he has no interest in the fund, yet if the point was so doubtful that the fund could not have been distributed without the opinion of the Court, and *either* the fund is administered by the Court under the suit of the plaintiff, *or* the Court makes a declaration of the rights of the parties in the suit, the plaintiff will as a general rule have his costs (*e*). But where a plaintiff, instituting proceedings as claiming a contingent interest, obtains an order for taking the accounts in an administration suit, and pending the reference his interest ceases, and the parties interested instead of adopting repudiate the proceedings, the plaintiff cannot have his costs (*f*).

[(*b*) *Re Llewellyn*, 25 Ch. D. 66;
Re Dickinson, W. N. 1884, p. 190.]

[(*c*) *Borthwick v. Ransford*, 28
Ch. D. 79.]

[(*d*) *Allen v. Norris*, W. N. 1884,
p. 118; S. C. 27 Ch. D. 333.]

(*e*) *Westcott v. Culliford*, 3 Hare,

274, and cases there cited; *Turner v. Frampton*, 2 Coll. 336; *Boreham v. Bignall*, 8 Hare, 134; *Lee v. Delane*, 1 De G. & Sm. 1; *Merlin v. Blaggrave*, 25 Beav. 134; *Wedgwood v. Adams*, 8 Beav. 103.

(*f*) *Hay v. Bowen*, 5 Beav. 610.

¹ *Re Gyhon*, 33 W. R. 620; 29 Ch. Div. 834.